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Submitter Information

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General Comment

See attached file(s)

Attachments

AI Action Plan Comment

March 15th, 2025

From:

Jacob Holmes,
Freelance Illustrator

Regarding the topic of intellectual property and AI training.

It cannot be stressed enough that a world in which AI companies have the freedom to use anyone's copyrighted data, without permission, to train their AI models, is a world in which neither American AI technology nor creators prosper in the long run. In this scenario, creators are not incentivized to continue producing the material that AI models rely on to function. Why should they? They would only be contributing to their own obsolescence, inadvertently feeding AI models, only for these models to compete against the original creators in their own marketplace, at a cost too cheap to compete with, or, for free.

Generative AI requires increasingly large amounts of data to improve model quality. The solutions proposed, wherein AI companies have total freedom with training data acquisition, or that of an opt-out system, in which rights-holders have the ability to mark their intellectual property as off-limits from future AI training (after it has already been used, or illegally redistributed), are heavily flawed and short-sighted, offering AI growth only in the short term, and at the cost of sacrificing America's creative industries.

It is my belief, as well as the overwhelming majority of professional creatives I know of, that the system for obtaining AI training data must be opt-in oriented. Permission must be granted from rights-holders, in the form of licensing, to companies wishing to use their valuable data to train AI models. In this scenario, creators of training data are incentivized to continue creating, if it means they can continue making a living doing so. This also ensures a steady stream of new training data for future AI models, creating an environment of mutual growth for both creators of training data and AI developers.

It is imperative that those responsible for developing this AI action plan, deeply consider the ramifications of altering copyright law in the favor of AI companies. For over two centuries, copyright has been the bedrock from which professional creators have been enabled to financially prosper from their work, contributing greatly to the US economy. We are now at a crucial moment, where we are at risk of throwing it all away, for the sake of a technology that isn't even guaranteed to deliver on its promises.

There is a future in which all parties can prosper. I implore you to consider the concerns of not just the big names of big tech, but of regular Americans, small businesses, and professional creators, who helped build this country, and can continue to help in the age of AI. Thank you for your time.

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